

SENATE No. 3219

Senate, July 23, 2026 -- Text of amendment (222) (offered by Senator Kennedy) to the Ways and Means amendment (Senate, No. 3178) to the House Bill relative to economic development in the commonwealth.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 by inserting after section 109 the following section:-

2 SECTION 109A. The General Laws are hereby amended by inserting after chapter 112A
3 the following chapter:-

4 Chapter 112B. Social Work Licensure Compact

5 Section 1. The purpose of this compact is to facilitate interstate practice of regulated
6 social workers by improving public access to competent social work services. The compact
7 preserves the regulatory authority of states to protect public health and safety through the current
8 system of state licensure. This compact is designed to achieve the following objectives:

9 (a) increase public access to social work services;

10 (b) reduce overly burdensome and duplicative requirements associated with holding
11 multiple licenses;

12 (c) enhance the member states' ability to protect the public's health and safety;

13 (d) encourage the cooperation of member states in regulating multistate practice;

(e) promote mobility and address workforce shortages by eliminating the necessity for licenses in multiple states by providing for the mutual recognition of other member state licenses;

(f) support military families;

(g) facilitate the exchange of licensure and disciplinary information among member states;

(h) authorize all member states to hold a regulated social worker accountable for abiding by a member state's laws, regulations and applicable professional standards in the member state in which the client is located at the time care is rendered; and

(i) allow for the use of telehealth to facilitate increased access to regulated social work services.

Section 2. As used in this chapter, unless the context requires otherwise, the following words shall have the following meanings:

(a) "Active military member", any individual with full-time duty status in the active armed forces of the United States including members of the National Guard and Reserve.

(b) "Adverse action", any administrative, civil, equitable or criminal action permitted by a state's laws which is imposed by a licensing authority or other authority against a regulated social worker, including actions against an individual's license or multistate authorization to practice such as revocation, suspension, probation, monitoring of the licensee, limitation on the licensee's practice or any other encumbrance on licensure affecting a regulated social worker's authorization to practice, including issuance of a cease and desist action.

(c) “Alternative program”, a non-disciplinary monitoring or practice remediation process approved by a licensing authority to address practitioners with an impairment.

(d) “Charter member states”, member states who have enacted legislation to adopt this compact where such legislation predates the effective date of this compact as described in section 14.

(e) “Compact Commission” or “Commission”, the government agency whose membership consists of all states that have enacted this compact, which is known as the Social Work Licensure Compact Commission, as described in section 10, and which shall operate as an instrumentality of the member states.

(f) “Current significant investigative information”, (1) investigative information that a licensing authority, after a preliminary inquiry that includes notification and an opportunity for the regulated social worker to respond has reason to believe is not groundless and, if proved true, would indicate more than a minor infraction as may be defined by the commission; or (2) investigative information that indicates that the regulated social worker represents an immediate threat to public health and safety, as may be defined by the commission, regardless of whether the regulated social worker has been notified and has had an opportunity to respond.

(g) “Data system”, a repository of information about licensees, including, continuing education, examination, licensure, current significant investigative information, disqualifying event, multistate licenses and adverse action information or other information as required by the commission.

(h) “Disqualifying event”, any adverse action or incident which results in an encumbrance that disqualifies or makes the licensee ineligible to either obtain, retain or renew a multistate license.

(i) “Domicile”, the jurisdiction in which the licensee resides and intends to remain indefinitely.

(j) “Encumbrance”, a revocation or suspension of, or any limitation on, the full and unrestricted practice of social work licensed and regulated by a licensing authority.

(k) “Executive committee”, a group of delegates elected or appointed to act on behalf of, and within the powers granted to them by, the compact and commission.

(l) “Home state”, the member state that is the licensee’s primary domicile.

(m) “Impairment”, a condition or conditions that may impair a practitioner’s ability to engage in full and unrestricted practice as a regulated social worker without some type of intervention and may include alcohol and drug dependence, mental health impairment and neurological or physical impairments.

(n) “Licensee(s)”, an individual who currently holds a license from a state to practice as a regulated social worker.

(o) “Licensing authority”, the board or agency of a member state, or equivalent, that is responsible for the licensing and regulation of regulated social workers.

(p) “Member state”, a state, commonwealth, district or territory of the United States of America that has enacted this compact.

(q) “Multistate authorization to practice”, a legally authorized privilege to practice, which is equivalent to a license, associated with a multistate license permitting the practice of social work in a remote state.

(r) “Multistate license”, a license to practice as a regulated social worker issued by a home state licensing authority that authorizes the regulated social worker to practice in all member states under multistate authorization to practice.

(s) “Qualifying national exam”, a national licensing examination approved by the commission.

(t) “Regulated social worker”, any clinical, master’s or bachelor’s social worker licensed by a member state regardless of the title used by that member state.

(u) “Remote state”, a member state other than the licensee’s home state.

(v) “Rule(s)” or “Rule(s) of the commission”, a regulation or regulations duly promulgated by the commission, as authorized by the compact, that has the force of law.

(w) “Single state license”, a social work license issued by any state that authorizes practice only within the issuing state and does not include multistate authorization to practice in any member state.

(x) “Social work” or “Social work services”, the application of social work theory, knowledge, methods, ethics and the professional use of self to restore or enhance social, psychosocial or biopsychosocial functioning of individuals, couples, families, groups, organizations and communities through the care and services provided by a regulated social

worker as set forth in the member state’s statutes and regulations in the state where the services are being provided.

(y) “State”, any state, commonwealth, district or territory of the United States of America that regulates the practice of social work.

(z) “Unencumbered license”, a license that authorizes a regulated social worker to engage in the full and unrestricted practice of social work.

Section 3. (a) To be eligible to participate in the compact, a potential member state must currently meet all of the following criteria:

(1) license and regulate the practice of social work at either the clinical, master’s or bachelor’s category;

(2) require applicants for licensure to graduate from a program that is:

(i) operated by a college or university recognized by the licensing authority;

(ii) accredited, or in candidacy by an institution that subsequently becomes accredited, by an accrediting agency recognized by either:

(A) the Council for Higher Education Accreditation, or its successor; or

(B) the United States Department of Education; and

(iii) corresponds to the licensure sought as outlined in section 4;

(3) require applicants for clinical licensure to complete a period of supervised practice;

and

(4) have a mechanism in place for receiving, investigating and adjudicating complaints about licensees.

(b) To maintain membership in the compact a member state shall:

(1) require that applicants for a multistate license pass a qualifying national exam for the corresponding category of multistate license sought as outlined in section 4;

(2) participate fully in the commission's data system, including using the commission's unique identifier as defined in rules;

(3) notify the commission, in compliance with the terms of the compact and rules, of any adverse action or the availability of current significant investigative information regarding a licensee;

(4) implement procedures for considering the criminal history records of applicants for a multistate license. Such procedures shall include the submission of fingerprints or other biometric-based information by applicants for the purpose of obtaining an applicant's criminal history record information from the Federal Bureau of Investigation and the agency responsible for retaining that state's criminal records;

(5) comply with the rules of the commission;

(6) require an applicant to obtain or retain a license in the home state and meet the home state's qualifications for licensure or renewal of licensure, as well as all other applicable home state laws;

(7) authorize a licensee holding a multistate license in any member state to practice in accordance with the terms of the compact and rules of the commission; and

(8) designate a delegate to participate in the commission meetings.

(c) A member state meeting the requirements of subsections (a) and (b) of section 3 of this compact shall designate the categories of social work licensure that are eligible for issuance of a multistate license for applicants in such member state. To the extent that any member state does not meet the requirements for participation in the compact at any particular category of social work licensure, such member state may choose, but is not obligated to, issue a multistate license to applicants that otherwise meet the requirements of section 4 for issuance of a multistate license in such category or categories of licensure.

(d) The home state may charge a fee for granting the multistate license.

Section 4. (a) To be eligible for a multistate license under the terms and provisions of the compact, an applicant, regardless of category, must:

(1) hold or be eligible for an active, unencumbered license in the home state;

(2) pay any applicable fees, including any state fee, for the multistate license;

(3) submit, in connection with an application for a multistate license, fingerprints or other biometric data for the purpose of obtaining criminal history record information from the Federal Bureau of Investigation and the agency responsible for retaining that state's criminal records;

(4) notify the home state of any adverse action, encumbrance or restriction on any professional license taken by any member state or non-member state within 30 days from the date the action is taken;

(5) meet any continuing competence requirements established by the home state; and

(6) abide by the laws, regulations and applicable standards in the member state where the client is located at the time care is rendered.

(b) An applicant for a clinical-category multistate license must meet all of the following requirements:

(1) fulfill a competency requirement, which shall be satisfied by either:

(i) passage of a clinical-category qualifying national exam; or

(ii) licensure of the applicant in their home state at the clinical category, beginning prior to such time as a qualifying national exam was required by the home state and accompanied by a period of continuous social work licensure thereafter, all of which may be further governed by the rules of the commission; or

(iii) the substantial equivalency of the foregoing competency requirements which the commission may determine by rule;

(2) attain at least a master's degree in social work from a program that is:

(i) operated by a college or university recognized by the licensing authority; and

(ii) accredited, or in candidacy that subsequently becomes accredited, by an accrediting agency recognized by either:

(A) the Council for Higher Education Accreditation or its successor; or

(B) the United States Department of Education; and

173 (3) fulfill a practice requirement, which shall be satisfied by demonstrating completion of
174 either:

175 (i) a period of postgraduate supervised clinical practice equal to a minimum of 3,000
176 hours; or

177 (ii) a minimum of 2 years of full-time postgraduate supervised clinical practice; or

178 (iii) the substantial equivalency of the foregoing practice requirements which the
179 commission may determine by rule.

180 (c) An applicant for a master's-category multistate license must meet all of the following
181 requirements:

182 (1) fulfill a competency requirement, which shall be satisfied by either:

183 (i) passage of a masters-category qualifying national exam;

184 (ii) licensure of the applicant in their home state at the master's category, beginning prior
185 to such time as a qualifying national exam was required by the home state at the master's
186 category and accompanied by a continuous period of social work licensure thereafter, all of
187 which may be further governed by the rules of the commission; or

188 (iii) the substantial equivalency of the foregoing competency requirements which the
189 commission may determine by rule; and

190 (2) attain at least a master's degree in social work from a program that is:

191 (i) operated by a college or university recognized by the licensing authority; and

192 (ii) accredited, or in candidacy that subsequently becomes accredited, by an accrediting
193 agency recognized by either:

194 (A) the Council for Higher Education Accreditation or its successor; or

195 (B) the United States Department of Education.

196 (d) An applicant for a bachelor's-category multistate license must meet all of the
197 following requirements:

198 (1) fulfill a competency requirement, which shall be satisfied by either:

199 (i) passage of a bachelor's-category qualifying national exam;

200 (ii) licensure of the applicant in their home state at the bachelor's category, beginning
201 prior to such time as a qualifying national exam was required by the home state and accompanied
202 by a period of continuous social work licensure thereafter, all of which may be further governed
203 by the rules of the commission; or

204 (iii) the substantial equivalency of the foregoing competency requirements which the
205 commission may determine by rule; and

206 (2) attain at least a bachelor's degree in social work from a program that is:

207 (i) operated by a college or university recognized by the licensing authority; and

208 (ii) accredited, or in candidacy that subsequently becomes accredited, by an accrediting
209 agency recognized by either:

210 (A) the Council for Higher Education Accreditation or its successor; or

(B) the United States Department of Education.

(e) The multistate license for a regulated social worker is subject to the renewal requirements of the home state. The regulated social worker must maintain compliance with the requirements of subsection (a) of section 4 to be eligible to renew a multistate license.

(f) The regulated social worker's services in a remote state are subject to that member state's regulatory authority. A remote state may, in accordance with due process and that member state's laws, remove a regulated social worker's multistate authorization to practice in the remote state for a specific period of time, impose fines, and take any other necessary actions to protect the health and safety of its citizens.

(g) If a multistate license is encumbered, the regulated social worker's multistate authorization to practice shall be deactivated in all remote states until the multistate license is no longer encumbered.

(h) If a multistate authorization to practice is encumbered in a remote state, the regulated social worker's multistate authorization to practice may be deactivated in that state until the multistate authorization to practice is no longer encumbered.

Section 5. (a) Upon receipt of an application for multistate license, the home state licensing authority shall determine the applicant's eligibility for a multistate license in accordance with section 4 of this compact.

(b) If such applicant is eligible pursuant to section 4 of this compact, the home state licensing authority shall issue a multistate license that authorizes the applicant or regulated social worker to practice in all member states under a multistate authorization to practice.

232 (c) Upon issuance of a multistate license, the home state licensing authority shall
233 designate whether the regulated social worker holds a multistate license in the bachelors, masters
234 or clinical category of social work.

235 (d) A multistate license issued by a home state to a resident in that state shall be
236 recognized by all compact member states as authorizing social work practice under a multistate
237 authorization to practice corresponding to each category of licensure regulated in each member
238 state.

239 Section 6. (a) Nothing in this compact, nor any rule of the commission, shall be construed
240 to limit, restrict or in any way reduce the ability of a member state to enact and enforce laws,
241 regulations or other rules related to the practice of social work in that state, where those laws,
242 regulations or other rules are not inconsistent with the provisions of this compact.

243 (b) Nothing in this compact shall affect the requirements established by a member state
244 for the issuance of a single state license.

245 (c) Nothing in this compact, nor any rule of the commission, shall be construed to limit,
246 restrict or in any way reduce the ability of a member state to take adverse action against a
247 licensee's single state license to practice social work in that state.

248 (d) Nothing in this compact, nor any rule of the commission, shall be construed to limit,
249 restrict or in any way reduce the ability of a remote state to take adverse action against a
250 licensee's multistate authorization to practice in that state.

(e) Nothing in this compact, nor any rule of the commission, shall be construed to limit, restrict or in any way reduce the ability of a licensee's home state to take adverse action against a licensee's multistate license based upon information provided by a remote state.

Section 7. (a) A licensee can hold a multistate license, issued by their home state, in only 1 member state at any given time.

(b) If a licensee changes their home state by moving between 2 member states:

(1) the licensee shall immediately apply for the reissuance of their multistate license in their new home state. The licensee shall pay all applicable fees and notify the prior home state in accordance with the rules of the commission.

(2) upon receipt of an application to reissue a multistate license, the new home state shall verify that the multistate license is active, unencumbered and eligible for reissuance under the terms of the compact and the rules of the commission. The multistate license issued by the prior home state will be deactivated and all member states notified in accordance with the applicable rules adopted by the commission.

(3) prior to the reissuance of the multistate license, the new home state shall conduct procedures for considering the criminal history records of the licensee. Such procedures shall include the submission of fingerprints or other biometric-based information by applicants for the purpose of obtaining an applicant's criminal history record information from the Federal Bureau of Investigation and the agency responsible for retaining that state's criminal records.

(4) if required for initial licensure, the new home state may require completion of jurisprudence requirements in the new home state.

(5) notwithstanding any other provision of this compact, if a licensee does not meet the requirements set forth in this compact for the reissuance of a multistate license by the new home state, then the licensee shall be subject to the new home state requirements for the issuance of a single state license in that state.

(c) If a licensee changes their primary state of residence by moving from a member state to a non-member state, or from a non-member state to a member state, then the licensee shall be subject to the state requirements for the issuance of a single state license in the new home state.

(d) Nothing in this compact shall interfere with a licensee's ability to hold a single state license in multiple states; provided, however, that for the purposes of this compact, a licensee shall have only 1 home state, and only 1 multistate license.

(e) Nothing in this compact shall interfere with the requirements established by a member state for the issuance of a single state license.

Section 8. (a) An active military member or their spouse shall designate a home state where the individual has a multistate license. The individual may retain their home state designation during the period the service member is on active duty.

Section 9. (a) In addition to the other powers conferred by state law, a remote state shall have the authority, in accordance with existing state due process law, to:

(1) take adverse action against a regulated social worker's multistate authorization to practice only within that member state and issue subpoenas for both hearings and investigations that require the attendance and testimony of witnesses as well as the production of evidence.

Subpoenas issued by a licensing authority in a member state for the attendance and testimony of

witnesses or the production of evidence from another member state shall be enforced in the latter state by any court of competent jurisdiction, according to the practice and procedure of that court applicable to subpoenas issued in proceedings pending before it. The issuing licensing authority shall pay any witness fees, travel expenses, mileage and other fees required by the service statutes of the state in which the witnesses or evidence are located.

(2) only the home state shall have the power to take adverse action against a regulated social worker's multistate license.

(b) For purposes of taking adverse action, the home state shall give the same priority and effect to reported conduct received from a member state as it would if the conduct had occurred within the home state. In so doing, the home state shall apply its own state laws to determine appropriate action.

(c) The home state shall complete any pending investigations of a regulated social worker who changes their home state during the course of the investigations. The home state shall also have the authority to take appropriate action(s) and shall promptly report the conclusions of the investigations to the administrator of the data system. The administrator of the data system shall promptly notify the new home state of any adverse actions.

(d) A member state, if otherwise permitted by state law, may recover from the affected regulated social worker the costs of investigations and dispositions of cases resulting from any adverse action taken against that regulated social worker.

(e) A member state may take adverse action based on the factual findings of another member state; provided, that the member state follows its own procedures for taking the adverse action.

(f) (1) In addition to the authority granted to a member state by its respective social work practice act or other applicable state law, any member state may participate with other member states in joint investigations of licensees.

(2) Member states shall share any investigative, litigation or compliance materials in furtherance of any joint or individual investigation initiated under the compact.

(g) If adverse action is taken by the home state against the multistate license of a regulated social worker, the regulated social worker's multistate authorization to practice in all other member states shall be deactivated until all encumbrances have been removed from the multistate license. All home state disciplinary orders that impose adverse action against the license of a regulated social worker shall include a statement that the regulated social worker's multistate authorization to practice is deactivated in all member states until all conditions of the decision, order or agreement are satisfied.

(h) If a member state takes adverse action, it shall promptly notify the administrator of the data system. The administrator of the data system shall promptly notify the home state and all other member states of any adverse actions by remote states.

(i) Nothing in this compact shall override a member state's decision that participation in an alternative program may be used in lieu of adverse action.

(j) Nothing in this compact shall authorize a member state to demand the issuance of subpoenas for attendance and testimony of witnesses or the production of evidence from another member state for lawful actions within that member state.

(k) Nothing in this compact shall authorize a member state to impose discipline against a regulated social worker who holds a multistate authorization to practice for lawful actions within another member state.

Section 10. (a) The compact member states hereby create and establish a joint government agency whose membership consists of all member states that have enacted the compact known as the social work licensure compact commission. The commission is an instrumentality of the compact states acting jointly and not an instrumentality of any one state. The commission shall come into existence on or after the effective date of the compact as set forth in section 14.

(b) (1) Each member state shall have and be limited to 1 delegate selected by that member state's state licensing authority.

(2) The delegate shall be either:

(i) a current member of the state licensing authority at the time of appointment, who is a regulated social worker or public member of the state licensing authority; or

(ii) an administrator of the state licensing authority or their designee.

(3) The commission shall by rule or bylaw establish a term of office for delegates and may by rule or bylaw establish term limits.

(4) The commission may recommend removal or suspension of any delegate from office.

(5) A member state's state licensing authority shall fill any vacancy of its delegate occurring on the commission within 60 days of the vacancy.

355 (6) Each delegate shall be entitled to 1 vote on all matters before the commission
356 requiring a vote by commission delegates.

357 (7) A delegate shall vote in person or by such other means as provided in the bylaws. The
358 bylaws may provide for delegates to meet by telecommunication, videoconference or other
359 means of communication.

360 (8) The commission shall meet at least once during each calendar year. Additional
361 meetings may be held as set forth in the bylaws. The commission may meet by
362 telecommunication, video conference or other similar electronic means.

363 (c) The commission shall have the following powers:

364 (1) establish the fiscal year of the commission;

365 (2) establish code of conduct and conflict of interest policies;

366 (3) establish and amend rules and bylaws;

367 (4) maintain its financial records in accordance with the bylaws;

368 (5) meet and take such actions as are consistent with the provisions of this compact, the
369 commission's rules and the bylaws;

370 (6) initiate and conclude legal proceedings or actions in the name of the commission;
371 provided, that the standing of any state licensing board to sue or be sued under applicable law
372 shall not be affected;

373 (7) maintain and certify records and information provided to a member state as the
374 authenticated business records of the commission and designate an agent to do so on the
375 commission's behalf;

376 (8) purchase and maintain insurance and bonds;

377 (9) borrow, accept or contract for services of personnel, including, but not limited to,
378 employees of a member state;

379 (10) conduct an annual financial review;

380 (11) hire employees, elect or appoint officers, fix compensation, define duties, grant such
381 individuals appropriate authority to carry out the purposes of the compact and establish the
382 commission's personnel policies and programs relating to conflicts of interest, qualifications of
383 personnel and other related personnel matters;

384 (12) assess and collect fees;

385 (13) accept any and all appropriate gifts, donations, grants of money, other sources of
386 revenue, equipment, supplies, materials and services and receive, utilize and dispose of the same;
387 provided that at all times the commission shall avoid any appearance of impropriety or conflict
388 of interest;

389 (14) lease, purchase, retain, own, hold, improve or use any property, real, personal or
390 mixed, or any undivided interest therein;

391 (15) sell, convey, mortgage, pledge, lease, exchange, abandon or otherwise dispose of
392 any property real, personal, or mixed;

393 (16) establish a budget and make expenditures;

394 (17) borrow money;

395 (18) appoint committees, including standing committees, composed of members, state
396 regulators, state legislators or their representatives, consumer representatives and such other
397 interested persons as may be designated in this compact and the bylaws;

398 (19) provide and receive information from, and cooperate with, law enforcement
399 agencies;

400 (20) establish and elect an executive committee, including a chair and a vice chair;

401 (21) determine whether a state's adopted language is materially different from the model
402 compact language such that the state would not qualify for participation in the compact; and

403 (22) perform such other functions as may be necessary or appropriate to achieve the
404 purposes of this compact.

405 (d)(1) The executive committee shall have the power to act on behalf of the commission
406 according to the terms of this compact. The powers, duties and responsibilities of the executive
407 committee shall include:

408 (i) oversee the day-to-day activities of the administration of the compact including
409 enforcement and compliance with the provisions of the compact, its rules and bylaws and other
410 such duties as deemed necessary;

411 (ii) recommend to the commission changes to the rules or bylaws, changes to this
412 compact legislation, fees charged to compact member states, fees charged to licensees and other
413 fees;

414 (iii) ensure compact administration services are appropriately provided, including by
415 contract;

416 (iv) prepare and recommend the budget;

417 (v) maintain financial records on behalf of the commission;

418 (vi) monitor compact compliance of member states and provide compliance reports to the
419 commission;

420 (vii) establish additional committees as necessary;

421 (viii) exercise the powers and duties of the commission during the interim between
422 commission meetings, except for adopting or amending rules, adopting or amending bylaws and
423 exercising any other powers and duties expressly reserved to the commission by rule or bylaw;
424 and

425 (ix) other duties as provided in the rules or bylaws of the commission.

426 (2) The executive committee shall be composed of up to 11 members:

427 (i) the chair and vice chair of the commission shall be voting members of the executive
428 committee; and

429 (ii) the commission shall elect 5 voting members from the current membership of the
430 commission.

431 (iii) up to 4 ex-officio, nonvoting members from 4 recognized national social work
432 organizations.

433 (iv) the ex-officio members will be selected by their respective organizations.

434 (3) The commission may remove any member of the executive committee as provided in
435 the commission's bylaws.

436 (4) The executive committee shall meet at least annually.

437 (i) Executive committee meetings shall be open to the public, except that the executive
438 committee may meet in a closed, non-public meeting as provided in paragraph (2) of subsection
439 (f) below.

440 (ii) The executive committee shall give 7 days' notice of its meetings, posted on its
441 website and as determined to provide notice to persons with an interest in the business of the
442 commission.

443 (iii) The executive committee may hold a special meeting in accordance with clause (ii)
444 or paragraph (1) of subsection (f) below.

445 (e) The commission shall adopt and provide to the member states an annual report.

446 (f)(1) All meetings shall be open to the public, except that the commission may meet in a
447 closed, non-public meeting as provided in paragraph (2) of subsection (f).

448 (i) Public notice for all meetings of the full commission of meetings shall be given in the
449 same manner as required under the rulemaking provisions in section 12, except that the

450 commission may hold a special meeting as provided in clause (ii) of paragraph (1) of subsection
451 (f).

452 (ii) The commission may hold a special meeting when it must meet to conduct emergency
453 business by giving 48 hours' notice to all commissioners, on the commission's website, and
454 other means as provided in the commission's rules. The commission's legal counsel shall certify
455 that the commission's need to meet qualifies as an emergency.

456 (2) The commission or the executive committee or other committees of the commission
457 may convene in a closed, non-public meeting for the commission or executive committee or
458 other committees of the commission to receive legal advice or to discuss:

459 (i) non-compliance of a member state with its obligations under the compact;

460 (ii) the employment, compensation, discipline or other matters, practices or procedures
461 related to specific employees;

462 (iii) current or threatened discipline of a licensee by the commission or by a member
463 state's licensing authority;

464 (iv) current, threatened, or reasonably anticipated litigation;

465 (v) negotiation of contracts for the purchase, lease or sale of goods, services or real
466 estate;

467 (vi) accusing any person of a crime or formally censuring any person;

468 (vii) trade secrets or commercial or financial information that is privileged or
469 confidential;

(viii) information of a personal nature where disclosure would constitute a clearly unwarranted invasion of personal privacy;

(ix) investigative records compiled for law enforcement purposes;

(x) information related to any investigative reports prepared by or on behalf of or for use of the commission or other committee charged with responsibility of investigation or determination of compliance issues pursuant to the compact;

(xi) matters specifically exempted from disclosure by federal or member state law; or

(xii) other matters as promulgated by the commission by rule.

(3) If a meeting, or portion of a meeting, is closed, the presiding officer shall state that the meeting will be closed and reference each relevant exempting provision, and such reference shall be recorded in the minutes.

(4) The commission shall keep minutes that fully and clearly describe all matters discussed in a meeting and shall provide a full and accurate summary of actions taken, and the reasons therefore, including a description of the views expressed. All documents considered in connection with an action shall be identified in such minutes. All minutes and documents of a closed meeting shall remain under seal, subject to release only by a majority vote of the commission or order of a court of competent jurisdiction.

(g)(1) The commission shall pay, or provide for the payment of, the reasonable expenses of its establishment, organization, and ongoing activities.

(2) The commission may accept any and all appropriate revenue sources as provided in paragraph (13) of subsection (c).

(3) The commission may levy on and collect an annual assessment from each member state and impose fees on licensees of member states to whom it grants a multistate license to cover the cost of the operations and activities of the commission and its staff, which must be in a total amount sufficient to cover its annual budget as approved each year for which revenue is not provided by other sources. The aggregate annual assessment amount for member states shall be allocated based upon a formula that the commission shall promulgate by rule.

(4) The commission shall not incur obligations of any kind prior to securing the funds adequate to meet the same; nor shall the commission pledge the credit of any of the member states, except by and with the authority of the member state.

(5) The commission shall keep accurate accounts of all receipts and disbursements. The receipts and disbursements of the commission shall be subject to the financial review and accounting procedures established under its bylaws; provided, however, that all receipts and disbursements of funds handled by the commission shall be subject to an annual financial review by a certified or licensed public accountant, and the report of the financial review shall be included in and become part of the annual report of the commission.

(h)(1) The members, officers, executive director, employees and representatives of the commission shall be immune from suit and liability, both personally and in their official capacity, for any claim for damage to or loss of property or personal injury or other civil liability caused by or arising out of any actual or alleged act, error or omission that occurred, or that the person against whom the claim is made had a reasonable basis for believing occurred within the scope of commission employment, duties or responsibilities; provided, however, that nothing in this paragraph shall be construed to protect any such person from suit or liability for any damage,

513 loss, injury, or liability caused by the intentional or willful or wanton misconduct of that person.
514 The procurement of insurance of any type by the commission shall not in any way compromise
515 or limit the immunity granted hereunder.

516 (2) The commission shall defend any member, officer, executive director, employee and
517 representative of the commission in any civil action seeking to impose liability arising out of any
518 actual or alleged act, error or omission that occurred within the scope of commission
519 employment, duties or responsibilities, or as determined by the commission that the person
520 against whom the claim is made had a reasonable basis for believing occurred within the scope
521 of commission employment, duties, or responsibilities; provided, however, that nothing herein
522 shall be construed to prohibit that person from retaining their own counsel at their own expense;
523 and provided further, that the actual or alleged act, error or omission did not result from that
524 person's intentional or willful or wanton misconduct.

525 (3) The commission shall indemnify and hold harmless any member, officer, executive
526 director, employee and representative of the commission for the amount of any settlement or
527 judgment obtained against that person arising out of any actual or alleged act, error or omission
528 that occurred within the scope of commission employment, duties or responsibilities, or that such
529 person had a reasonable basis for believing occurred within the scope of commission
530 employment, duties or responsibilities, provided that the actual or alleged act, error or omission
531 did not result from the intentional or willful or wanton misconduct of that person.

532 (4) Nothing herein shall be construed as a limitation on the liability of any licensee for
533 professional malpractice or misconduct, which shall be governed solely by any other applicable
534 state laws.

(5) Nothing in this compact shall be interpreted to waive or otherwise abrogate a member state's state action immunity or state action affirmative defense with respect to antitrust claims under the Sherman Act, Clayton Act, or any other state or federal antitrust or anticompetitive law or regulation.

(6) Nothing in this compact shall be construed to be a waiver of sovereign immunity by the member states or by the commission.

Section 11. (a) The commission shall provide for the development, maintenance, operation and utilization of a coordinated data system.

(b) The commission shall assign each applicant for a multistate license a unique identifier, as determined by the rules of the commission.

(c) Notwithstanding any other provision of state law to the contrary, a member state shall submit a uniform data set to the data system on all individuals to whom this compact is applicable as required by the rules of the commission, including:

(1) identifying information;

(2) licensure data;

(3) adverse actions against a license and information related thereto;

(4) non-confidential information related to alternative program participation, the beginning and ending dates of such participation, and other information related to such participation not made confidential under member state law;

(5) any denial of application for licensure and the reason(s) for such denial;

(6) the presence of current significant investigative information; and

(7) other information that may facilitate the administration of this compact or the protection of the public, as determined by the rules of the commission.

(d) The records and information provided to a member state pursuant to this compact or through the data system, when certified by the commission or an agent thereof, shall constitute the authenticated business records of the commission, and shall be entitled to any associated hearsay exception in any relevant judicial, quasi-judicial or administrative proceedings in a member state.

(e) Current significant investigative information pertaining to a licensee in any member state will only be available to other member states.

(1) It is the responsibility of the member states to report any adverse action against a licensee and to monitor the database to determine whether adverse action has been taken against a licensee. Adverse action information pertaining to a licensee in any member state will be available to any other member state.

(f) Member states contributing information to the data system may designate information that may not be shared with the public without the express permission of the contributing state.

(g) Any information submitted to the data system that is subsequently expunged pursuant to federal law or the laws of the member state contributing the information shall be removed from the data system.

Section 12. (a) The commission shall promulgate reasonable rules in order to effectively and efficiently implement and administer the purposes and provisions of the compact. A rule

576 shall be invalid and have no force or effect only if a court of competent jurisdiction holds that the
577 rule is invalid because the commission exercised its rulemaking authority in a manner that is
578 beyond the scope and purposes of the compact, or the powers granted hereunder, or based upon
579 another applicable standard of review.

580 (b) The rules of the commission shall have the force of law in each member state;
581 provided, however that where the rules of the commission conflict with the laws of the member
582 state that establish the member state's laws, regulations and applicable standards that govern the
583 practice of social work as held by a court of competent jurisdiction, the rules of the commission
584 shall be ineffective in that state to the extent of the conflict.

585 (c) The commission shall exercise its rulemaking powers pursuant to the criteria set forth
586 in this section and the rules adopted thereunder. Rules shall become binding on the day following
587 adoption or the date specified in the rule or amendment, whichever is later.

588 (d) If a majority of the legislatures of the member states rejects a rule or portion of a rule,
589 by enactment of a statute or resolution in the same manner used to adopt the compact within 4
590 years of the date of adoption of the rule, then such rule shall have no further force and effect in
591 any member state.

592 (e) Rules shall be adopted at a regular or special meeting of the commission.

593 (f) Prior to adoption of a proposed rule, the commission shall hold a public hearing and
594 allow persons to provide oral and written comments, data, facts, opinions and arguments.

595 (g) Prior to adoption of a proposed rule by the commission, and at least 30 days in
596 advance of the meeting at which the commission will hold a public hearing on the proposed rule,
597 the commission shall provide a notice of proposed rulemaking:

598 (1) on the website of the commission or other publicly accessible platform;

599 (2) to persons who have requested notice of the commission's notices of proposed
600 rulemaking; and

601 (3) in such other way(s) as the commission may by rule specify.

602 (h) The notice of proposed rulemaking shall include:

603 (1) the time, date and location of the public hearing at which the commission will hear
604 public comments on the proposed rule and, if different, the time, date and location of the meeting
605 where the commission will consider and vote on the proposed rule;

606 (2) if the hearing is held via telecommunication, video conference or other electronic
607 means, the commission shall include the mechanism for access to the hearing in the notice of
608 proposed rulemaking;

609 (3) the text of the proposed rule and the reason therefor;

610 (4) a request for comments on the proposed rule from any interested person; and

611 (5) the manner in which interested persons may submit written comments.

612 (i) All hearings will be recorded. A copy of the recording and all written comments and
613 documents received by the commission in response to the proposed rule shall be available to the
614 public.

615 (j) Nothing in this section shall be construed as requiring a separate hearing on each rule.
616 Rules may be grouped for the convenience of the commission at hearings required by this
617 section.

618 (k) The commission shall, by majority vote of all members, take final action on the
619 proposed rule based on the rulemaking record and the full text of the rule.

620 (1) The commission may adopt changes to the proposed rule provided the changes do not
621 enlarge the original purpose of the proposed rule.

622 (2) The commission shall provide an explanation of the reasons for substantive changes
623 made to the proposed rule as well as reasons for substantive changes not made that were
624 recommended by commenters.

625 (3) The commission shall determine a reasonable effective date for the rule. Except for an
626 emergency as provided in subsection (l), the effective date of the rule shall be no sooner than 30
627 days after issuing the notice that it adopted or amended the rule.

628 (l) Upon determination that an emergency exists, the commission may consider and adopt
629 an emergency rule with 48 hours' notice, with opportunity to comment, provided that the usual
630 rulemaking procedures provided in the compact and in this section shall be retroactively applied
631 to the rule as soon as reasonably possible, in no event later than 90 days after the effective date
632 of the rule. For the purposes of this provision, an emergency rule is one that must be adopted
633 immediately in order to:

634 (1) meet an imminent threat to public health, safety, or welfare;

635 (2) prevent a loss of commission or member state funds;

(3) meet a deadline for the promulgation of a rule that is established by federal law or rule; or

(4) protect public health and safety.

(m) The commission or an authorized committee of the commission may direct revisions to a previously adopted rule for purposes of correcting typographical errors, errors in format, errors in consistency or grammatical errors. Public notice of any revisions shall be posted on the website of the commission. The revision shall be subject to challenge by any person for a period of 30 days after posting. The revision may be challenged only on grounds that the revision results in a material change to a rule. A challenge shall be made in writing and delivered to the commission prior to the end of the notice period. If no challenge is made, the revision will take effect without further action. If the revision is challenged, the revision may not take effect without the approval of the commission.

(n) No member state's rulemaking requirements shall apply under this compact.

Section 13. (a)(1) The executive and judicial branches of state government in each member state shall enforce this compact and take all actions necessary and appropriate to implement the compact.

(2) Except as otherwise provided in this compact, venue is proper and judicial proceedings by or against the commission shall be brought solely and exclusively in a court of competent jurisdiction where the principal office of the commission is located. The commission may waive venue and jurisdictional defenses to the extent it adopts or consents to participate in alternative dispute resolution proceedings. Nothing herein shall affect or limit the selection or

propriety of venue in any action against a licensee for professional malpractice, misconduct or any such similar matter.

(3) The commission shall be entitled to receive service of process in any proceeding regarding the enforcement or interpretation of the compact and shall have standing to intervene in such a proceeding for all purposes. Failure to provide the commission service of process shall render a judgment or order void as to the commission, this compact or promulgated rules.

(b)(1) If the commission determines that a member state has defaulted in the performance of its obligations or responsibilities under this compact or the promulgated rules, the commission shall provide written notice to the defaulting state. The notice of default shall describe the default, the proposed means of curing the default, and any other action that the commission may take, and shall offer training and specific technical assistance regarding the default.

(2) The commission shall provide a copy of the notice of default to the other member states.

(c) If a state in default fails to cure the default, the defaulting state may be terminated from the compact upon an affirmative vote of a majority of the delegates of the member states, and all rights, privileges and benefits conferred on that state by this compact may be terminated on the effective date of termination. A cure of the default does not relieve the offending state of obligations or liabilities incurred during the period of default.

(d) Termination of membership in the compact shall be imposed only after all other means of securing compliance have been exhausted. Notice of intent to suspend or terminate shall be given by the commission to the governor, the majority and minority leaders of the

678 defaulting state's legislature, the defaulting state's state licensing authority and each of the
679 member states' state licensing authority.

680 (e) A state that has been terminated is responsible for all assessments, obligations and
681 liabilities incurred through the effective date of termination, including obligations that extend
682 beyond the effective date of termination.

683 (f) Upon the termination of a state's membership from this compact, that state shall
684 immediately provide notice to all licensees within that state of such termination. The terminated
685 state shall continue to recognize all licenses granted pursuant to this compact for a minimum of 6
686 months after the date of said notice of termination.

687 (g) The commission shall not bear any costs related to a state that is found to be in default
688 or that has been terminated from the compact, unless agreed upon in writing between the
689 commission and the defaulting state.

690 (h) The defaulting state may appeal the action of the commission by petitioning the
691 United States District Court for the District of Columbia or the federal district where the
692 commission has its principal offices. The prevailing party shall be awarded all costs of such
693 litigation, including reasonable attorney's fees.

694 (i)(1) Upon request by a member state, the commission shall attempt to resolve disputes
695 related to the compact that arise among member states and between member and non-member
696 states.

697 (2) The commission shall promulgate a rule providing for both mediation and binding
698 dispute resolution for disputes as appropriate.

(j)(1) By majority vote as provided by rule, the commission may initiate legal action against a member state in default in the United States District Court for the District of Columbia or the federal district where the commission has its principal offices to enforce compliance with the provisions of the compact and its promulgated rules. The relief sought may include both injunctive relief and damages. In the event judicial enforcement is necessary, the prevailing party shall be awarded all costs of such litigation, including reasonable attorney's fees. The remedies herein shall not be the exclusive remedies of the commission. The commission may pursue any other remedies available under federal or the defaulting member state's law.

(2) A member state may initiate legal action against the commission in the United States District Court for the District of Columbia or the federal district where the commission has its principal offices to enforce compliance with the provisions of the compact and its promulgated rules. The relief sought may include both injunctive relief and damages. In the event judicial enforcement is necessary, the prevailing party shall be awarded all costs of such litigation, including reasonable attorney's fees.

(3) No person other than a member state shall enforce this compact against the commission.

Section 14. (a) The compact shall come into effect on the date on which the compact statute is enacted into law in the seventh member state.

(1) On or after the effective date of the compact, the commission shall convene and review the enactment of each of the first seven member states ("charter member states") to determine if the statute enacted by each such charter member state is materially different than the model compact statute.

(i) A charter member state whose enactment is found to be materially different from the model compact statute shall be entitled to the default process set forth in section 13.

(ii) If any member state is later found to be in default, or is terminated or withdraws from the compact, the commission shall remain in existence and the compact shall remain in effect even if the number of member states should be less than 7.

(2) Member states enacting the compact subsequent to the 7 initial charter member states shall be subject to the process set forth in paragraph (21) of subsection (c) of section 10 to determine if their enactments are materially different from the model compact statute and whether they qualify for participation in the compact.

(3) All actions taken for the benefit of the commission or in furtherance of the purposes of the administration of the compact prior to the effective date of the compact or the commission coming into existence shall be considered to be actions of the commission unless specifically repudiated by the commission.

(4) Any state that joins the compact subsequent to the commission's initial adoption of the rules and bylaws shall be subject to the rules and bylaws as they exist on the date on which the compact becomes law in that state. Any rule that has been previously adopted by the commission shall have the full force and effect of law on the day the compact becomes law in that state.

(b) Any member state may withdraw from this compact by enacting a statute repealing the same.

(1) A member state's withdrawal shall not take effect until 180 days after enactment of the repealing statute.

(2) Withdrawal shall not affect the continuing requirement of the withdrawing state's licensing authority to comply with the investigative and adverse action reporting requirements of this compact prior to the effective date of withdrawal.

(3) Upon the enactment of a statute withdrawing from this compact, a state shall immediately provide notice of such withdrawal to all licensees within that state. Notwithstanding any subsequent statutory enactment to the contrary, such withdrawing state shall continue to recognize all licenses granted pursuant to this compact for a minimum of 180 days after the date of such notice of withdrawal.

(c) Nothing contained in this compact shall be construed to invalidate or prevent any licensure agreement or other cooperative arrangement between a member state and a non-member state that does not conflict with the provisions of this compact.

(d) This compact may be amended by the member states. No amendment to this compact shall become effective and binding upon any member state until it is enacted into the laws of all member states.

Section 15. (a) This compact and the commission's rulemaking authority shall be liberally construed so as to effectuate the purposes, and the implementation and administration of the compact. Provisions of the compact expressly authorizing or requiring the promulgation of rules shall not be construed to limit the commission's rulemaking authority solely for those purposes.

(b) The provisions of this compact shall be severable and if any phrase, clause, sentence or provision of this compact is held by a court of competent jurisdiction to be contrary to the constitution of any member state, a state seeking participation in the compact, or of the United States, or the applicability thereof to any government, agency, person or circumstance is held to be unconstitutional by a court of competent jurisdiction, the validity of the remainder of this compact and the applicability thereof to any other government, agency, person or circumstance shall not be affected thereby.

(c) Notwithstanding subsection (b) of this section, the commission may deny a state's participation in the compact or, in accordance with the requirements of subsection (b) of section 13, terminate a member state's participation in the compact, if it determines that a constitutional requirement of a member state is a material departure from the compact. Otherwise, if this compact shall be held to be contrary to the constitution of any member state, the compact shall remain in full force and effect as to the remaining member states and in full force and effect as to the member state affected as to all severable matters.

Section 16. (a) A licensee providing services in a remote state under a multistate authorization to practice shall adhere to the laws and regulations, including laws, regulations and applicable standards, of the remote state where the client is located at the time care is rendered.

(b) Nothing herein shall prevent or inhibit the enforcement of any other law of a member state that is not inconsistent with the compact.

(c) Any laws, statutes, regulations or other legal requirements in a member state in conflict with the compact are superseded to the extent of the conflict.

783 (d) All permissible agreements between the commission and the member states are
784 binding in accordance with their terms.